



**IN THE CONCILIATION, MEDIATION & ARBITRATION COMMISSION
(CMAC)**

HELD AT SITEKI

REF: SIM 018/10

In the matter between:-

SUSAN MAGONGO

APPLICANT

And

MANANGA COUNTRY CLUB

RESPONDENT

CORAM:

ARBITRATOR

: MTHUNZI SHABANGU

FOR APPLICANT

: IN PERSON

FOR RESPONDENT

: Ms HILLARY MASFEN

NATURE OF DISPUTE

: UNFAIR DISMISSAL

DATE OF HEARING

: 7TH JULY, 2010

ARBITRATION AWARD

1. DETAILS OF HEARING AND REPRESENTATION

- 1.1 The arbitration was held at CMAC offices, Simunye on the 7th July, 2010. The proceedings were captured on electronic and manual records.
- 1.2 The Applicant is Susan Magongo, an adult female Swazi of Nkambeni area, Hhohho Region.
- 1.3 The Respondent is Mananga Country Club, a body corporate conducting its business at Mananga, Hhohho region. Its postal address is P. O. Box 1, Tjaneni.
- 1.4 During the Arbitration process, the Applicant appeared personally representing herself and yet the Respondent was represented by its manageress–Ms Hillary Masfen.

2. ISSUE TO BE DECIDED

- 2.1 The issue to be decided pertains whether or not the Applicant's services with the Respondent were fairly terminated on the 2nd February, 2010.
- 2.2 Applicant claims that she was unfairly dismissed insofar as there was no disciplinary enquiry held before her dismissal, i.e. procedural unfairness.
- 2.3 She is claiming compensation for unfair dismissal.

3. BACKGROUND TO THE ISSUE

- 3.1 The Applicant was employed by the respondent on the 1st October, 2009 as a cook, earning E1 681-95 per month. She was based at Mananga Country Club, at Mananga. She was dismissed on the 2nd February, 2010 through a written letter drafted by the Respondent's manageress, after having worked for the Respondent for a period of four months.
- 3.2 The Respondent, Mananga Country Club, is the ex-employer of the Applicant. The Respondent is involved in the business of accommodation, catering and fast foods trades. It is under the ownership of Inyoni Yami Swaziland Irrigation Scheme(IYSIS). The Respondent confirms the employment relationship between the parties, but denies that the Applicant was unfairly dismissed. It alleges that there was no need to hold a disciplinary hearing as the applicant had unlawfully absented herself from duty for four consecutive days.

4. SURVEY OF EVIDENCE AND ARGUMENTS

The Applicant's Version;

- 4.1 Under oath, the Applicant testified that she is aged 41 years. She is a single parent for one child(22). She is a professional or qualified cook as she possesses a certificate in Hotel and